IN THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH (COURT – II)
(Through Hybrid Mode)

Item No.4
CP (CAA) No. 37/Chd/Hry/2024
(2nd Motion)

IN THE MATTER OF:
Vivekananda Social Foundation ... Transferor Company

With

Trident Institute of Social Sciences ... Transferee Company

Under Section: 230-232, CA 2013

Order delivered on 15.01.2025

CORAM:
SHRI. ASHISH VERMA, HON'BLE MEMBER (T)
SHRI. HARNAM SINGH THAKUR, HON'BLE MEMBER (J)

PRESENT:

For the Petitioner	**:**	Mr. Shubham Gupta, Advocate
For Income Tax Department	**:**	Mr. Yogesh Putney and Mr. Saurabh Kapoor, Senior Standing Counsels
For the RD	**:**	Mr. Vineet Khatri, Company Prosecutor
For the Official Liquidator	**:**	Mr. Edward Augustine George, Advocate

ORDER

Report of Income Tax Department has been filed vide Diary No.02782/11 dated 10.12.2024, Report of RD has been filed vide Diary No.02782/1 dated 22.10.2024, Report of Official Liquidator has been filed vide Diary No.02782/2 dated 21.10.2024, Response to the report of Income Tax Department in respect of petitioner company No.1 has been filed by learned counsel for the petitioner vide Diary No.02782/10 dated 05.12.2024, Response to the report of Income Tax Department in respect of Petitioner Companies No.2 & 3 has been filed by learned counsel for the petitioner vide Diary No. 02782/12 dated 13.12.2024, Response to the reports of RD and ROC has also been filed by learned counsel for the petitioner vide Diary No.

02782/7 dated 04.11.2024. Response to the report of the Official Liquidator has been filed by learned counsel for the petitioner vide Diary No. 02782/5 dated 04.11.2024. Compliance affidavit by learned counsel for the petitioner has been filed vide Diary No.02782/3 dated 04.11.2024. Affidavit of non-receipt of any objection to the scheme has been filed by learned counsel for the petitioner vide Diary No.02782/8 dated 11.11.2024. All are taken on record.

It is stated by Mr. Vineet Khatri, Company Prosecutor that there are no observations against the scheme and RD also has no objection against the scheme. Similarly, it is stated by the learned counsel for the Official Liquidator that there are no observations and objections against the scheme. However, it is stated by the learned Senior Standing Counsel for the Income Tax Department that there are some proceedings pending under Section 143(2) and 147 of I.T. Act against Transferor Company No. 2 and Transferee Company as mentioned in column No. 7 of the report of Income Tax Department filed vide Diary No. 02782/11 dated 10.12.2024, however, there is no demand outstanding against both these companies. Upon which, it is stated by the learned counsel for the Petitioner Companies that in response to the report, it is undertaken by the Transferee Company that all the proceedings pending against the Transferor Company No. 2 and Transferee Company will be carried on as per provisions of Income Tax Act against the transferee company.

Heard. Order reserved.

Sd/-
(ASHISH VERMA)
HON'BLE MEMBER (T)

Sd/-
(HARNAM SINGH THAKUR)
HON'BLE MEMBER (J)

January 15, 2025
Mukta